

25CHCV01972 25CHCV01972

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-07-13

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DEFENDANT LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION
AUTHORITY'S MOTION TO DISMISS PLAINTIFF'S COMPLAINT

Motion filed on April 21, 2026.

MOVING PARTY: Defendant Los Angeles County Metropolitan Transportation
Authority, erroneously sued as Los Angeles Metropolitan Transportation
Authority

RESPONDING PARTY: Plaintiff Leticia Rodriguez

NOTICE: OK.

RELIEF REQUESTED: Order dismissing Plaintiff's complaint for failure to comply
with the Court's February 25, 2026 discovery order.

RULING: Granted in part.

BACKGROUND

On June 6, 2025, Leticia Rodriguez (Plaintiff) filed a
Complaint against Los Angeles Metropolitan Transportation Authority (Defendant).

Defendant answered on July 15, 2025. On February 25, 2026, the Court granted Defendant's motions to compel Plaintiff's responses to Form Interrogatories, Set One, Special Interrogatories, Set One, and Demand for Inspection and Production of Documents, Set One, and awarded monetary sanctions.

Defendant filed this motion on April 21, 2026, supported by the declaration of Gabriel H. Wainfeld and Exhibit A. No timely opposition was filed.

DISCUSSION

Disobeying a discovery order constitutes a misuse of the discovery process, for which the court may impose monetary, issue, evidence, or terminating sanctions. (Code Civ. Proc., §§ 2023.010, subd. (g); 2023.030; 2030.290, subd. (c); 2031.300, subd. (c); *Van Sickel v. Gilbert* (2011) 196 Cal.App.4th 1495, 1516.) Terminating sanctions under section 2023.030, subdivision (d), include staying further proceedings until the party obeys a discovery order, dismissing the action, and entering a default judgment.

Because terminating sanctions are drastic, they must be used sparingly, tailored to the harm, and generally imposed in an incremental approach, with dismissal as a last resort. (*Dep't of Forestry & Fire Prot. v. Howell* (2017) 18 Cal.App.5th 154, 191.) A court should generally not impose dismissal as a first sanction unless it finds lesser sanctions would be ineffective. (*Lopez v. Watchtower Bible & Tract Soc'y of New York, Inc.* (2016) 246 Cal.App.4th 566, 604 (*Lopez*.) Where a stay is imposed, the court should specify a deadline for compliance and set a hearing to consider further sanctions if the party fails to comply. (See *Duggan v. Moss* (1979) 98 Cal.App.3d 735, 742–744.) The Court considers the totality of the circumstances, including whether the conduct was willful, the detriment to the propounding party, and the number of unsuccessful attempts to obtain the discovery. (*Los Defensores, Inc. v. Gomez* (2014) 223 Cal.App.4th 377, 390.)

Here, Plaintiff disobeyed the Court's February 25, 2026 discovery order. The Court ordered Plaintiff to serve verified responses, without objections, to Defendant's Form Interrogatories, Set One, Special Interrogatories, Set One, and Demand for Inspection and Production of Documents, Set One, within 20 days. The Court also ordered Plaintiff and Plaintiff's counsel to pay \$1,050.00 in monetary sanctions within 30 days.

Defendant's counsel declares Plaintiff has served no responses. (Wainfeld Decl. ¶ 4.) Plaintiff filed no opposition and offers no justification for the failure to comply. On this record, the Court finds Plaintiff's noncompliance willful. Plaintiff's noncompliance prejudices Defendant because Defendant still lacks verified responses to basic written discovery served in July 2025.

Still, dismissal remains premature. The Court has imposed only monetary sanctions. It has not yet imposed a stay, issue sanction, or evidence sanction, and the record does not show that lesser sanctions would be ineffective. Defendant's request for dismissal is denied without prejudice, and the Court imposes the lesser terminating sanction of a stay.

CONCLUSION

Defendant's request for dismissal is DENIED without prejudice.

The Court GRANTS a lesser terminating sanction. Pursuant to Code of Civil Procedure § 2023.030, subd. (d)(2), all proceedings as to Plaintiff Leticia Rodriguez are hereby STAYED.

Order to Show Cause Re: Dismissal of Plaintiff Leticia Rodriguez's Action is scheduled for 08/03/2026 at 08:30 AM in Department F46 at Chatsworth Courthouse.

On or before 07/27/2026, Plaintiff Leticia Rodriguez must (1) serve verified, code-compliant responses to Defendant's Form Interrogatories, Set One, Special Interrogatories, Set One, and Demand for Inspection and Production of Documents, Set One, without objections, in compliance with the Court's February 25, 2026 Order; (2) Plaintiff and/or Plaintiff's counsel must pay the outstanding sanctions of \$1,050.00; and (3) Plaintiff must file and serve a Notice of Compliance with proof of service.

If Plaintiff Leticia Rodriguez fails to file a Notice of Compliance by the 7/27/26 deadline, she must appear at the OSC to show cause why her claims should not be dismissed. Failure to appear may be deemed further evidence of abandonment, and the Court may then enter a dismissal with prejudice upon further order. Defendant shall serve this Order by 07/15/2026 and file proof of service.

Non-Appearance Case Review is scheduled for 07/28/2026 at
10:00 AM in Department F46 at Chatsworth Courthouse.

Defendant shall give notice.